# MOTOR ACCIDENTS, RASH DRIVING & LEGAL REMEDIES

Statutory Framework: Bharatiya Nyaya Sanhita (BNS), Bharatiya Nagarik Suraksha Sanhita (BNSS), Indian Penal Code (IPC), Motor Vehicles Act, 1988 & Landmark Precedents

## 1. Section 281 BNS (Rash Driving on a Public Way) — Corresponds to Section 279 IPC

Whoever drives any vehicle, or rides, on any public way in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both. Driving a commercial vehicle or truck on the wrong side or wrong lane of a road is prima facie evidence of rash and negligent driving under Section 281 BNS and Section 279 IPC.

## 2. Section 125 BNS (Act Endangering Life or Personal Safety) — Corresponds to Sections 337 & 338 IPC

Whoever does any act so rashly or negligently as to endanger human life or the personal safety of others: (a) if hurt is caused to any person, shall be punished under Section 125(a) BNS (Section 337 IPC) with imprisonment up to six months or fine; (b) if grievous hurt is caused, shall be punished under Section 125(b) BNS (Section 338 IPC) with imprisonment up to three years or fine. In vehicular collisions resulting from wrong-lane driving, charges under Section 281 and Section 125 BNS are filed concurrently.

## 3. Section 106 BNS (Causing Death by Negligence) — Corresponds to Section 304A IPC

Section 106(1) BNS stipulates that whoever causes the death of any person by doing any rash or negligent act not amounting to culpable homicide, shall be punished with imprisonment of either description for a term which may extend to five years, and fine. Section 106(2) BNS provides that whoever causes the death of any person by rash and negligent driving of a vehicle and escapes without reporting it to a police officer or magistrate soon after the incident shall be punished with imprisonment up to ten years and fine.

## 4. Procedure to Press Charges: Mandatory FIR under Section 173 BNSS / Section 154 CrPC

Any victim of a vehicular accident or any person who witnesses the collision has the legal right to press charges by filing a First Information Report (FIR) under Section 173 BNSS (formerly Section 154 CrPC) at the nearest police station or via dialling 112. Because rash driving causing endangerment or hurt is a cognizable offence, police officers are mandatorily bound to register an FIR without conducting a preliminary inquiry, as conclusively held by the Supreme Court Constitution Bench in Lalita Kumari v. Govt of UP (2014) 2 SCC 1. If the station house officer refuses to register the FIR, the complainant has the statutory remedy to submit a written complaint to the Superintendent of Police under Section 173(3) BNSS or file a complaint before the Judicial Magistrate under Section 175(3) BNSS (formerly 156(3) CrPC).

## 5. Motor Vehicles Act, 1988: Dangerous Driving & MACT Compensation Claims

Section 184 of the Motor Vehicles Act, 1988 penalizes driving dangerously, including contravention of lane discipline or wrong-side driving, with imprisonment up to one year or fine up to five thousand rupees. Section 134 MV Act mandates that the driver of the motor vehicle must take all reasonable steps to secure medical attention for the injured person and report the accident details to the nearest police station within 24 hours. Crucially, under Section 166 of the Motor Vehicles Act, 1988, the victim (or legal heirs) has the right to file an application for financial compensation before the Motor Accident Claims Tribunal (MACT) against the driver, vehicle owner, and the third-party insurance company for vehicle damages, hospitalization costs, permanent disability, and loss of earning capacity.

## 6. Evidentiary Requirements: Preserving Collision Evidence under BSA Section 63

To successfully establish liability for wrong-lane collision in criminal and MACT proceedings, the following evidence must be preserved: (1) Vehicle details: Registration plate number, vehicle make, commercial permit, and insurance certificate of the offending truck; (2) Photographic and video evidence of the collision scene showing vehicle positioning on the wrong side, skid

marks, divider layout, and debris; (3) Electronic records: Dashcam footage, traffic CCTV recordings, or mobile phone videos, admissible as primary electronic evidence under Section 63 BSA (formerly Section 65B IEA); (4) Medico-Legal Certificate (MLC): Immediate medical examination at a hospital documenting nature of blunt injuries or fractures; (5) Site inspection report and mechanical inspection panchnama prepared by police investigators.